

POLITICAL OBLIGATION, RESISTANCE AND LAW

UPSC PRELIMS + GS MAINS | PRIMARY HOME: GS-II CONCEPTUAL FOUNDATIONS

Continuous core-first rail | Advanced enrichment stays subordinate to the GS core

1

ORIGIN AND DATED RAIL

1552-1634	Edward Coke
1588-1653	Robert Filmer
1588-1679	Thomas Hobbes
1632-1704	John Locke
1711-76	David Hume
1712-78	Jean Jaques Rousseau
1723-80	William Blackstone
1724-1804	Immanuel Kant
1729-97	Edmund Burke
1763-1847	James Kent
1779-1845	Joseph Story
1790-1859	John Austin
1817-62	Henry David Thoreau
1822-88	Henry Maine
1838-1909	Ludwig Gumplowicz
1842-1921	Peter Kropotkin
1857-1936	Hugo Krabbe
1859-1928	Leon Duguit
1861	Early History of Society and Its Relation to Moral Ideals
1869-1948	Mahatma Gandhi
1870-1964	Roscoe Pound
1882	In his Lectures on the Principles of Political Obligation

MECHANISM	Chronology fixes what each named work actually changed, so the argument cannot slide into a vague rise-and-fall story.
TRAP / LIMIT	"Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)
ANSWER LINE	force / divine right / strong idealist or absolutist consent

2

CHAPTER SPINE, STEP BY STEP

- Gauba begins with rival grounds of political obligation: force, divine right, conservative prudence, consent, idealism, Marxism, anarchism and Gandhian civil disobedience (PDF pp.280-287)
- He rejects purely force-based and divine-right views because they do not secure morally reasoned obedience and leave no room for judging unjust commands (PDF pp.281-282)
- Among consent theories, Hobbes and Rousseau tend toward strong obligation, whereas Locke gives the clearest limited version by making government a trust answerable to rights and consent (PDF pp.283-284)

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- Green's idealist revision places obligation toward the organized power of society and the common good rather than toward any government demanding blind obedience (PDF pp.284-286)
- Marxists and anarchists deny political obligation to the existing coercive class-state, though for different reasons and with different visions of social transformation (PDF p.286)
- Gandhi supplies a disciplined doctrine of resistance: unjust law may be broken, but only openly, non-violently, after persuasion fails, and without sectional selfishness (PDF p.287)
- The law chapter then shifts from obedience to legal concept-formation: law in political science is prescriptive law, interpreted by natural, analytical, historical and sociological schools (PDF pp.289-294)
- Gauba finally examines sources of law, law's relation to morality and liberty, and the rule of law as an anti-arbitrariness principle (PDF pp.294-300)

MECHANISM The spine is the order in which the source itself develops the argument; reproducing it keeps the answer sequenced rather than listed.

TRAP / LIMIT "A valid law is automatically a just law." -> Legal validity and moral legitimacy can diverge; the whole discussion of natural law, equity and conscience depends on this (PDF pp.290-296)

ANSWER LINE Political obligation: the duty to obey political authority and the laws necessary to maintain political institutions (PDF p.280)

3 ILLUSTRATIONS ATTACHED TO THE CLAIMS THEY SUPPORT

Gauba's own caution that failure to deliver full employment,

Gauba's own caution that failure to deliver full employment, universal education or medical care is not by itself sufficient ground for resistance is a useful example of how he limits the politics of disobedience (PDF p.288)

Thoreau's refusal to pay taxes and imprisonment are used by

Thoreau's refusal to pay taxes and imprisonment are used by Gauba as a classic illustration of principled disobedience (PDF p.287)

Conscientious objection to military service during the First

Conscientious objection to military service during the First World War is cited as a case where legal duty and moral conscience can clash (PDF p.287)

Gandhi's 1930 salt-law defiance is Gauba's clearest

Gandhi's 1930 salt-law defiance is Gauba's clearest illustration of public, non-violent civil disobedience against colonial law (PDF p.287)

Gauba's law chapter uses reform of child marriage,

Gauba's law chapter uses reform of child marriage, widow-burning, untouchability and bonded labour as historical examples of law leading social-moral reform (PDF p.296)

Traffic regulation appears as Gauba's simple illustration of

Traffic regulation appears as Gauba's simple illustration of morally neutral but order-preserving law and of rule-of-law clarity (PDF pp.296, 300)

MECHANISM Examples are evidence only when the answer states what they prove and where they stop proving it.

TRAP / LIMIT "Rule of law means identical rights and duties in all situations." -> Gauba's traffic example shows generality and clarity do not exclude differentiated regulation by relevant situation (PDF p.300)

ANSWER LINE Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself

4 COMPARISON MATRIX

Position	Core logic	Main examples	Scope
Unlimited / near-unlimited	Obey because force, divine command, absolutist consent or exalted state leaves little room for resistance (PDF pp.280-284)	force theory, divine right, Hobbes, strong Hegelian reading, strong Rousseau reading (PDF pp.280-285)	Dangerous because it can sanctify unjust commands
Limited / conditional	Obey when law protects rights or common good; resist when trust is broken or justice is violated (PDF pp.283-287)	Locke, Green, cautious constitutional resistance, Gandhi (PDF pp.283-287)	Best basis for rule-bound but critical citizenship
Anti-obligation / negative obligation	Existing coercive state is not morally owed obedience as such (PDF p.286)	Marxist and anarchist positions (PDF p.286)	Strong critique, but difficult to institutionalize without transition problems
Mode	What it targets	Method	Relation to law
Resistance	Specific unjust command, policy or authority abuse (PDF pp.287-288)	Can range from protest to direct action	May remain within or move against law
Revolution	The wider political or social order itself (PDF p.288)	Long-term systemic overturning	Goes beyond ordinary legal correction
Conscientious objection	A particular legal duty that conscience rejects, such as military service (PDF p.287)	Personal refusal	Accepts punishment rather than compliance
Civil disobedience	Unjust law or policy, usually to awaken public conscience (PDF p.287)	Public, non-violent, principled, penalty-accepting	Breaks specific law while respecting law in general
School	What law is	Key names	Risk if overstated
Natural law	Law draws authority from higher moral right or justice (PDF pp.290-291)	Stoics, Roman jurists, Kant-style rational morality (PDF pp.290-291)	Can become too abstract if detached from institutions
Analytical / positivist	Law is valid through social or institutional sources rather than because its content is morally sound (PDF pp.291-292)	Austin (command), Kelsen (Grundnorm/hierarchy), Hart (rules; primary/secondary and rule-of-recognition vocabulary is a standard	Dworkin's interpretivist principles critique challenges the claim that source-based rules exhaust law

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Historical	Law evolves from custom, people and historical development (PDF pp.292-293)	Savigny, Maine (PDF pp.292-293)	Can over-romanticize inherited norms
Sociological	Law serves social purpose and should be judged by social effects (PDF pp.293-294)	Duguit, Pound, Laski (PDF pp.293-294)	Can underplay formal validity if used carelessly
Theory	Justifying question	Strongest claim	Main objection
Retributive	What does this culpable wrong deserve?	Proportion restores moral/legal balance and avoids private revenge	Pain may neither repair harm nor reform the offender; revenge must not masquerade as justice
Deterrent	What sentence will prevent future crime?	Punishment may discourage the offender and the public (PDF p.165)	It risks using the offender merely as an example and may ignore impulsive crime or social causes
Reformative	How can the offender return to lawful life?	Rehabilitation treats crime's personal and social causes (PDF pp.165-166)	Not every offence is explained by pathology or deprivation; grave culpability and public protection remain relevant

MECHANISM	Running the comparison on shared axes converts a description into an adjudication.
TRAP / LIMIT	"Hobbes, Locke and Rousseau all justify the same kind of consent." -> Hobbes prioritizes security, Locke trust and limited government, Rousseau general will and civic freedom (PDF pp.283-284)
ANSWER LINE	Austin, Kelsen and Hart within legal positivism; Dworkin as a major interpretivist critic (PDF pp.291-292):

EXAMINER TRAP FIREWALL

TRAP	"Civil disobedience means any illegal act done for a cause."
REPAIR	Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)
TRAP	"A valid law is automatically a just law."
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TRAP	"Law always reduces liberty."
REPAIR	Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298)
TRAP	"This topic is basically Indian Polity."
REPAIR	This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere
TRAP	"Retribution means unlimited revenge."
REPAIR	A defensible retributive theory is proportional and public, not private vengeance
TRAP	"A severe sentence is automatically an effective deterrent."
REPAIR	Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention
TRAP	"Reformative theory denies responsibility."
REPAIR	It changes the purpose and method of punishment; it does not by itself erase guilt, accountability or protection of society
TRAP	"Capital punishment follows automatically from a heinous crime."
REPAIR	The source presents rival arguments; irreversibility, error, human dignity, proportionality and deterrence must be separately examined
TRAP	"Austin's command theory and Hart's rule theory are the same thing with different names."
REPAIR	Hart explicitly rejects Austin's coercive-command model as too narrow (built on the criminal-law model) and replaces it with a structure of rules covering duties, powers and procedure (PDF pp.291-292)
TRAP	"Kelsen's Grundnorm is a moral standard smuggled into positivism."
REPAIR	Kelsen keeps the basic norm purely as a validity-conferring apex of the legal hierarchy, deliberately separate from questions of morality or moral obligation - this is exactly why he remains a positivist despite using a normative concept (PDF p.291)
TRAP	"Kelsen's General Theory of Law and State is a 1961 work."
REPAIR	1945 is the year of its first English publication (Harvard University Press, tr. Anders Wedberg); 1961 belongs to Hart's The Concept of Law. The two dates sit adjacent in the Austin -> Kelsen -> Hart -> Dworkin sequence and are easily swapped - if unsure in the exam hall, name the works and the sequence without dates rather than guessing a year (§12, bibliographic-dates note)

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TRAP	"Dworkin says judges can decide hard cases however they like."
REPAIR	Dworkin insists principles are part of law and constrain judicial reasoning even though they are less precise than rules and cannot be hierarchically ranked; discretion is bounded, not unlimited (PDF p.292)
TRAP	"Political obligation, resistance, civil disobedience and revolution are interchangeable terms for defying the state."
REPAIR	Keep them analytically separate: obligation asks whether/why one should obey at all; resistance targets a specific unjust act; civil disobedience is a disciplined, public, penalty-accepting mode of resistance; revolution targets the wider order itself and carries the highest risk (PDF pp.287-288, Table B)
TRAP	2025: Can the right to life be absolute with reference to capital punishment?
REPAIR	
TRAP	2024: Accept or reject capital punishment as an effective deterrent
REPAIR	
TRAP	2023: Proportionality and juvenile punishment
REPAIR	
TRAP	2022: Moral justifications of capital punishment
REPAIR	
TRAP	Answer frame: define penal aim
REPAIR	distinguish retribution/deterrence/reform -> apply proportionality -> test irreversibility and error -> separate moral argument from empirical deterrence -> conclude conditionally
MECHANISM	Each pair is a tested misreading followed by the exact repair the source supports.
TRAP / LIMIT	"Law always reduces liberty." -> Under a democratic welfare state, law often secures equal liberty and social welfare by rational restraint (PDF pp.296-298)
ANSWER LINE	"Civil disobedience means any illegal act done for a cause." -> Gauba's version is public, non-violent, principled, last-resort and penalty-accepting (PDF p.287)

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OWNERSHIP BOUNDARIES AND CROSS-LINKS

THIS TOPIC OWNS

- Use Political-Theory/advanced/14_Political-Obligation-Resistance-and-Law.md for fuller reconstruction, jurisprudence debate and answer-engine use
- Use Political-Theory/basic/13_Diverse-Perspectives-on-the-State.md because the kind of state one imagines affects the scope of obedience one permits
- Use Political-Theory/basic/11_Sovereignty-and-Pluralism.md for the earlier problem of where authority is located
- Use Political-Theory/basic/05_Socialism-Fascism-Anarchism-and-Gandhism.md for ideological roots of anarchist and Gandhian positions
- Use Philosophy/paper-2/socio-political/Individual-and-State.md and Philosophy/paper-2/socio-political/Forms-of-Government.md for Philosophy-optional parallels on state, authority and obligation
- Use Polity/advanced/10_Amendment-and-Basic-Structure.md only for Indian constitutional application; this file does not reproduce statute/case detail

DELEGATED OR EXCLUDED

- Direct constitutional, scheme and case facts

MECHANISM	Syllabus boundary discipline prevents a conceptual answer from being marked down as off-topic.
TRAP / LIMIT	"This topic is basically Indian Polity." -> This file gives conceptual tests; Indian statutes, Articles and case-law belong elsewhere
ANSWER LINE	Directive - What it demands - Trap to avoid

7

REVISION CAPSULE AND ANSWER SPINE

- Open with the question itself: political obligation asks why, when and how far one must obey political authority
- Divide answers into three camps: unlimited, limited and anti-obligation
- Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission
- Use Gandhi to define principled resistance: unjust law, public protest, non-violence, acceptance of penalty, no sectional selfishness
- In law answers, define prescriptive law, list the four schools, then distinguish legality from morality and liberty

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- End with rule of law: known law, general law, non-retrospective law and restrained government

MECHANISM The capsule is the last-minute recall rail; it should be reproducible in under two minutes.

TRAP / LIMIT "Retribution means unlimited revenge." -> A defensible retributive theory is proportional and public, not private vengeance

ANSWER LINE Claim (Austin): law is the sovereign's command backed by sanction; validity requires nothing more

8 GS MAINS QUESTION ROUTES CARRIED BY THIS TOPIC

10-mark route

Why is force insufficient to establish political obligation? Answer in 150 words

10-mark route

Distinguish resistance, revolution, conscientious objection and civil disobedience. Answer in 150 words

10-mark route

Compare Hobbes, Locke, Rousseau and T.H. Green on the grounds and limits of political obligation. Answer in 150 words

15-mark route

Critically examine the jurisprudential debate from Austin through Kelsen and Hart to Dworkin. Answer in 250 words

15-mark route

When is civil disobedience justified? Discuss with reference to Gandhi, Thoreau and the rule of law. Answer in 250 words

15-mark route

Can legal validity by itself generate political obligation? Discuss with reference to jurisprudence, resistance and the rule of law. Answer in 250 words

MECHANISM Directive fidelity, not content volume, decides the band a Mains answer lands in.

TRAP / LIMIT "A severe sentence is automatically an effective deterrent." -> Deterrence is an empirical proposition; severity alone is neither necessary nor sufficient proof of prevention

ANSWER LINE 1. Thoreau's tax refusal and imprisonment - principled civil disobedience

QUALIFIED VERDICT

Unlimited vs limited vs anti-obligation: some theories demand near-total obedience, some qualify obedience by rights or common good, and some deny obligation to the coercive state itself. Contrast Hobbes with Locke first; then add Rousseau and Green to show why consent or common good can still justify obedience without blind submission. Write it as a graded finding - boundary, named evidence, objection, and the residue that survives the objection - rather than as a summary.